

Rajendra Kumar v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 20 July 2022 · WRIT - C No. 19950 of 2022 · **Writ disposed without merits; liberty to object under clause 6.5; coercive action stayed eight weeks.**

HEADNOTE

A writ seeking quashing of an electricity recovery citation was disposed without examining merits. The consumer was granted liberty to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee, to be decided in accordance with law within four weeks after hearing. Coercive recovery was stayed for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Rajendra Kumar petitioned the Allahabad High Court for certiorari to quash an electricity recovery citation dated 23 November 2021 for Rs 4,65,088 issued by the distribution authorities. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection against the demand, which would be decided in a time-bound manner. The Court heard counsel for the petitioner, the State, and the licensee, and disposed of the writ on that representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

recovery-citation-relegated-to-6.5

HOLDING

A writ challenging an electricity recovery citation is disposed without examining merits by granting liberty to file an objection under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee, to be decided in accordance with law within a fixed period after hearing, with coercive recovery stayed for a limited period pending that decision. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery citation was disposed by relegating the consumer to a paragraph 6.5 objection before the licensee, without a merits decision on the demand. ¶ 1

clause-6.5-pending-representation-to-be-decided If the objection under paragraph 6.5 is filed within four weeks, the licensee must decide it in accordance with law within the next four weeks after hearing the consumer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION AND DEMAND OF RS 4,65,088

The Court expressly declined to express any opinion on the merits. ¶ 1